

HEMANT CHAWLA



“We have a majority. The suggestion to adjourn came from the principal opposition party, the BJP.”

**VAYALAR RAVI,
PARLIAMENTARY AFFAIRS MINISTER**



Year	Time lost due to interruptions	Time lost due to adjournment of the House following interruptions	Total
2004	3.48	60.41	64.29
2005	6.18	69.15	75.33
2006	8.14	89.51	98.05
2007	4.39	128.17	132.56

Hours. Minutes; Courtesy: PRS Legislative Research

The Information Technology (Amendment) Bill, 2006, is a case in point.

Forget parliamentary debates being life-enhancing literature, as Churchill once said, even decent time is not spared for debating legislations. In 2007, the Rajya Sabha passed 32 per cent of bills (not including financial bills) with little or no discussion. The percentage of bills passed with almost no discussion in the Rajya Sabha increased from 26 per cent in 2005 to 32 per cent in 2007. During the same period, the number of bills on which substantial debate (more than two hours) took place reduced from 29 per cent in 2005 to 24 per cent in 2007. Out of 485 (non minister) Lok Sabha MPs, 107 spoke on some legislative issues in 2007. Of these, 89 MPs spoke three times or less, 12 MPs spoke about four to seven times, and six MPs spoke eight times or more in 2007. “The shrinking role of the Parliament was eloquently demonstrated on August 26, 2004, when contrary to convention, the Parliament decided to suspend the Question Hour and pass regular budget and Finance Bill without any discussion or adequate cause (such as

forthcoming elections) within few minutes. This was the result of a backroom agreement between the leaders of parties in government and the Opposition,” says Bimal Jalan, former Reserve Bank Governor and a Rajya Sabha MP.

The need for debate on the legislations is imperative. Says C.V. Madhukar, director, PRS Legislative Research, “Legislation passed in the Parliament has far-reaching implications, and the basic thinking on an issue is frozen for a long time. Many important acts that are in force, such as the Land Acquisition Act and the Police Act were passed in the 19th century. Even though they have undergone amendments, the basic framework remains largely frozen. The policy costs of such lack of deliberation in Parliament can be fatal.” The controversial sez bill, which led to large scale farmer protests and police firings, was passed without substantial debate.

The fault clearly lies with respective governments which had failed to preserve the code of conduct of the

Parliament. Even countries like Pakistan, with a not-so-blissful record of democracy, have a constitutional provision that on a requisition signed by not less than one-fourth of the total membership of the National Assembly, the Speaker shall summon the Assembly within fourteen days.

At a conference of whips and presiding officers, suggestions were made to raise the number of days on which the House convened to about 130 days per year. In Britain and Canada, the legislatures sit for more than 140 days a year and time lost due to disruptions is compensated for by sitting longer hours. But none of these have been put into practice here. While speaking on discipline at the first ever Conference of Presiding Officers on September 23, 1992, former president of India K.R. Narayanan had described disorder in the legislative bodies as “infantile disorders or the measles of the middle-age which are bound to pass, but pass they must, otherwise the system will be in mortal danger”. Evidently, the ‘measles of the middle age’ continues to pose a serious threat to the survival of the Parliamentary democracy. ■